

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

MALACHI DAVIS,

PLAINTIFF,

-against-

THE CITY OF NEW YORK; and POLICE OFFICER
RODRIGUEZ, BADGE #939345,

DEFENDANTS.

-----X INDEX NO.:

AS AND FOR A
FIRST CAUSE OF:
ACTION:
(FALSE ARREST)

PLAINTIFF COMPLAINT

-----X

1. On or about June 4, 2020, and at all times relevant herein, plaintiff who timely and properly filed a notice of claim herein, Claim #2020PI024429, was wrongly, intentionally, maliciously, without probable cause and/or warrant, arrested at approximately 700PM in Bronx, NY, for allegedly violating a Mayoral Order that was not effective until 800PM, and defendants intentionally and without privilege struck him upon his face and body, and neck, causing him to sustain injuries to his head, face, neck, back, shoulders, legs, and body, and caused him to incur and will incur medical-related expenses.

2. Plaintiff is ready, willing and able to submit to a proper 50- hearing, and due to New York Executive Order Section 202.55 et. seq., all limitations are suspended.
AS AND FOR A SECOND CAUSE OF ACTION: (MALICIOUS PROSECUTION)

3. Plaintiff herewith repeats, restates and realleges Paragraphs 1-2 above.

4. The criminal case, Case #2020SX013961, against plaintiff was dismissed on or about 10-2-20, in Bronx Criminal Court, Bronx, NY, was then favorably terminated, and defendants wrongly, intentionally, without probable cause, maliciously and egregiously prosecuted a criminal action against plaintiff herein.

WHEREFORE, plaintiff prays for relief as follows: 1. General Damages in amount of \$25,000,000.00; 2. Punitive damages in amount of \$50,000,000.00; 3. Any other just relief.

DATED: NY, NY: 11-4-20

Respectfully submitted